

1 ENGROSSED HOUSE
2 BILL NO. 3790

By: Adams, Gise, West (Tammy),
Stark, and Waldron of the
House

3
4 and

Thompson of the Senate
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8 An Act relating to contracts; creating the Oklahoma
9 Homeowner Repair Contract Protection Act; defining
10 home solicitation contract; allowing a five-day
voidable contract period for homeowners; providing
for codification; and providing an effective date.
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13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 1100 of Title 15, unless there
16 is created a duplication in numbering, reads as follows:

17 This act shall be known and may be cited as the "Oklahoma
18 Homeowner Repair Contract Protection Act".

19 SECTION 2. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 1101 of Title 15, unless there
21 is created a duplication in numbering, reads as follows:

22 "Home solicitation contract" means entering into a home repair
23 contract or services in which the home repair contractor or a person
24 acting for him or her engages in a personal solicitation of the sale

1 at a residence of the buyer, and the buyer's agreement is given to
2 the contractor or a person acting for him or her. It does not
3 include a sale made pursuant to a preexisting revolving contract, or
4 a contract made pursuant to prior negotiations between the parties
5 at a business establishment at a fixed location where goods or
6 services are offered or exhibited for sale. Nothing in this act
7 shall prohibit advertising, responding to homeowner-initiated
8 contact, or performing services when contacted directly by the
9 property owner.

10 SECTION 3. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 1102 of Title 15, unless there
12 is created a duplication in numbering, reads as follows:

13 1. In addition to any right otherwise to revoke an offer, the
14 homeowner has the right to cancel a home solicitation contract until
15 midnight of the fifth calendar day after the day on which the
16 homeowner signs an agreement for home repairs;

17 2. Cancellation occurs when the homeowner gives written notice
18 of cancellation via certified mail to the contractor at the address
19 stated in the agreement or offer to purchase;

20 3. Notice of cancellation is given when it is deposited in a
21 mailbox properly addressed and postage prepaid; and

22 4. Notice of cancellation given by the homeowner need not take
23 a particular form and is sufficient if it indicates by any form of
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written expression the intention of the homeowner not to be bound by the home solicitation sale.

SECTION 4. This act shall become effective November 1, 2026.

Passed the House of Representatives the 3rd day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the ____ day of _____, 2026.

Presiding Officer of the Senate